

Bullying at work

1 . What bullying is

Although there is no legal definition of bullying, it can be described as unwanted behaviour from a person or group that is either:

- offensive, intimidating, malicious or insulting
- an abuse or misuse of power that undermines, humiliates, or causes physical or emotional harm to someone

Bullying might:

- be a regular pattern of behaviour or a one-off incident
- happen face-to-face, on social media, in emails or calls
- happen at work or in other work-related situations
- not always be obvious or noticed by others

It's possible someone might not know their behaviour is bullying. It can still be bullying even if they do not realise it or do not intend to bully someone.

Examples of bullying

Examples of bullying at work could include:

- constantly criticising someone's work
- spreading malicious rumours about someone
- constantly putting someone down in meetings
- deliberately giving someone a heavier workload than everyone else
- excluding someone from team social events
- putting humiliating, offensive or threatening comments or photos on social media

Upward bullying

Bullying can also happen from staff towards someone more senior, for example a manager. This is sometimes called 'upward bullying' or 'subordinate bullying'.

It can be from one employee or a group of employees.

Examples of upward bullying can include:

- showing continued disrespect
- refusing to complete tasks
- spreading rumours
- constantly undermining someone's authority

- doing things to make someone seem unskilled or unable to do their job properly

It can be difficult for someone in a senior role to realise they're experiencing bullying behaviour from their staff.

It's important to consider the real reasons for the behaviour. For example, there might be a wider issue with the culture of the organisation that can be identified and addressed.

When bullying might be harassment

Bullying and harassment are often confused. By law (Equality Act 2010), bullying behaviour can be harassment if it relates to any of the following 'protected characteristics':

- age
- disability
- gender reassignment
- race
- religion or belief
- sex
- sexual orientation

[Find out more about harassment](#)

Bullying that's not classed as harassment could still lead to other legal issues. For example, severe bullying might contribute towards [constructive dismissal](#).

Employer responsibilities

Employers and employees have a mutual duty to treat each other honestly and with respect.

This means employees have the right to:

- have trust and confidence in their employer
- expect not to be bullied at work

Employers have the right to:

- expect employees not to bully each other
- expect employees to treat their managers with respect and follow all reasonable instructions

Employers also have a legal duty of care to protect their employees from harm. This includes dealing with bullying issues.

Employers should:

- do all they can to try to prevent bullying happening
- take any bullying complaint seriously and look into it as soon as possible

[Find out how employers should handle a bullying complaint](#)

Get more advice and support

If you need help with understanding bullying, you can [contact the Acas helpline](#).

Acas also offers [free e-learning on bullying and harassment](#).

2. If you think you're being bullied

If you think you're being bullied at work, you can take steps to deal with it.

Consider whether something is bullying

Sometimes, what seems like bullying might not be. Before you take any other action, you could talk it through with someone you trust.

Talking it through can sometimes help you see the situation in a different way.

Example of behaviour that's not bullying

Caro finds part of their job difficult and makes mistakes. Their manager Ray finds some mistakes with Caro's work and talks to them privately. Ray explains the problems and how to correct them. Caro is not used to being criticised and thinks they're being treated unfairly. They feel Ray is a bully. In this situation, Ray is not bullying but acting appropriately as a manager.

Example of bullying that's not intentional

Ray finds Caro does not accept feedback. Because of this, Ray starts checking all of Caro's work and sends emails about every mistake, however small. Ray is frustrated about the impact of Caro's mistakes on the team's work. This comes across in Ray's tone, and they say things like "another silly mistake". Although Ray does not realise it, this is likely to be bullying behaviour.

Example of deliberate bullying

Ray gets fed up with Caro's mistakes. They start to pick on Caro in front of others, saying Caro can only cope with simple tasks. Sometimes Ray copies other people into emails criticising Caro's work. Ray's aim is to make Caro so uncomfortable they look for another job. Ray's behaviour is now open and serious bullying.

Talk with someone

In some cases, the person you think has bullied you might not realise the impact of their behaviour. You could talk with them, if you feel you can.

If you decide to talk to them:

- explain what they did and how it made you feel
- stay calm
- be firm, not aggressive

If you do not feel comfortable talking with the person directly, you could:

- put this in an email
- ask for support from a trade union representative, if you're a trade union member
- talk with your manager or someone else at work you feel comfortable with

Keeping a record

It's a good idea to keep a diary or record of the bullying, including:

- what happened
- how it made you feel
- dates and times it happened
- any evidence, for example emails or screenshots of social media posts
- any witnesses

Most bullying happens out of sight of others, so you might not have any witnesses. This should not stop you reporting the bullying.

Raising the problem informally

It's usually best to raise the problem informally first. You can do this with your manager. Informal resolution is usually quicker and less stressful for everyone.

If your manager is the person bullying you, you can talk to someone else. Your organisation might have a policy on who to talk to in this situation, for example another manager or HR. If there's no policy, you can decide who to raise it with.

[Find out more about how to raise a problem at work](#)

Raising the problem formally

You can raise a grievance if:

- you've already tried to resolve things informally but it did not work
- you feel the situation is too serious to be resolved informally

Raising a grievance is where you make a formal complaint to your employer.

[Find out more about raising a grievance](#)

What your employer should do

Your employer should take any complaint of bullying seriously and look into it as soon as possible.

[Find out more about how employers should handle a bullying complaint](#)

If you have to leave your job because of bullying

If you have to leave your job because of severe bullying that your employer did nothing about, you might be able to make a claim to an employment tribunal for constructive dismissal.

Resigning from your job is a big step to take. You should consider this very carefully.

[Find out more about constructive dismissal](#)

Get more advice and support

For help and advice, you can:

- [contact the Acas helpline](#)
- talk to your trade union representative, if you have one

If you're struggling to cope and need someone to talk to, you can contact:

- [Samaritans](#)
- an employee assistance programme (EAP) if your employer has one